BEFORE THE PHILADELPHIA BOARD OF ETHICS

J. Shane Creamer, Jr. **Executive Director** **Philadelphia Board of Ethics** 1515 Arch Street, 18th Floor Philadelphia, PA 19102 Petitioner vs. **Ryan Boyer** **Tax Review Board** [redacted] Vine Street Philadelphia, PA [redacted] rboyer@ldcphilly.org Respondent	**Matter No.:** 2510ET25

SUPPLEMENTAL BRIEF IN SUPPORT OF NOTICE OF ADMINISTRATIVE ENFORCEMENT PROCEEDING

Pursuant to Philadelphia Board of Ethics (the "Board") Regulation No. 2 ("Regulation No. 2") and the Procedures for Administrative Enforcement Proceedings that Supplement Board Regulation No. 2, the Executive Director submits the following Supplemental Brief in Support of Notice of Administrative Enforcement Proceeding ("Supplemental Brief") in accordance with the instructions regarding submission of requested information and the format required in the Hearing Officer's February 4, 2026 Supplemental Briefing Order, wherein the Hearing Officer requested "additional factual information concerning communications, or attempted communications, between the Executive Director's staff and the Respondent about the alleged violations at issue in this matter, as provided in Paragraph 5 of the Notice." Supplemental Briefing Order at 2.

I. PROPOSED FINDINGS OF FACT

1. The Executive Director incorporates by reference the Proposed Findings of Fact in paragraphs 1 through 3 of the Brief in Support of Notice of Administrative Enforcement Proceeding filed on December 5, 2025 as though the same were set forth fully herein.

II. PROPOSED CONCLUSIONS OF LAW

2. The Executive Director incorporates by reference the Proposed Conclusions of Law in paragraphs 4 through 11 of the Brief in Support of Notice of Administrative Enforcement Proceeding filed on December 5, 2025 as though the same were set forth fully herein.

III. ARGUMENT

The Executive Director incorporates by reference the Argument in the Brief in Support of Notice of Administrative Enforcement Proceeding filed on December 5, 2025 as though the same were set forth fully herein.

IV. ADDITIONAL INFORMATION REQUESTED PURSUANT TO THE HEARING OFFICER'S SUPPLEMENTAL BRIEFING ORDER

The Executive Director submits the Declaration of Investigative Analyst Alexander Kramer ("Declaration") in response to the Hearing Officer's request for "additional factual information concerning communications, or attempted communications, between the Executive Director's staff and the Respondent about the alleged violations at issue in this matter, as provided in Paragraph 5 of the Notice." Supplemental Briefing Order at 2. The Declaration is attached hereto as Exhibit A.

Date: 2/18/26

Respectfully submitted,

/s J. Shane Creamer, Jr.
J. Shane Creamer, Jr. Esq.
Executive Director

Richard Barzaga, Esq.
Senior Staff Attorney

Erin Ambrose, Esq.
Staff Attorney

City of Philadelphia Board of Ethics
1515 Arch Street, 18th Floor
Philadelphia, PA 19102
Phone: (215) 686-9450
Fax: (215) 686-9453